

DEPARTMENT OF VETERANS AFFAIRS

**Justification for Single Source Awards IAW [FAR 12.102\(a\)](#)
For
Over Micro-Purchase Threshold but Not Exceeding the SAT (\$250K)**

Acquisition Plan Action ID: 36C244-26-AP-1829

- 1. Contracting Activity:** Department of Veterans Affairs, VISN 04, Butler VA Abie Abraham Health Care Center, 353 N. Duffy Rd, Butler, PA, Network Contracting Office 4 (NCO4). 2237# 529-26-3-051-0130
- 2. Brief Description of Supplies/ Services required and the intended use/Estimated Amount:**
This is a brand name only request of Bio-Rad reagents for a firm-fixed-price contract over a five year ordering period. These reagents will be used by the Butler VA Laboratory Medicine Service.

The total estimated value of this purchase for a five-year ordering period is \$219,461.31.
- 3. Unique characteristics that limit availability to only one source, with the reason no other supplies or services can be used:** These reagents are known compounds that work with the current analyzer, providing true and accurate patient results. All testing that is done within the laboratory mandates that QC is performed and found to be acceptable prior to any patient testing can be done.
- 4. Description of market research conducted and results or statement why it was not conducted:**
Facility POC provided initial market research and a brand name justification using GSA as the procurement method. Contracting officer was unable to find sufficient competition on GSA, so used ADDS Up and issued a sources sought notice. Only one vendor responded to the sources sought, but three vendors, were identified on ADDSUP who appeared capable of meeting the requirement. Due to lack of competition on GSA, and not meeting the SBA or VA Rule of Two, the CO recommends an unrestricted solicitation to SAM.gov.
- 5. Contracting Officer's Certification:** *Purchase is approved in accordance with FAR 12.102(a). I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.*

Keri Hester
Contracting Officer